

Algorithmic Impact Assessment Results

Version: 0.10.0

Project Details

1. Name of Respondent

Maura Wasilewski

2. Job Title

Project Coordinator

3. Department

Industry (Department of)

4. Branch

Spectrum and Telecommunications Sector (STS)

5. Project Title

Non-Competitive Local Licensing (NCLL)

6. Project ID from IT Plan

N/A

7. Project Phase

Implementation

[Points: 0]

8. Please provide a project description:

The Non-Competitive Local Licensing (NCLL) application expands opportunities for businesses, rural and remote communities, and Indigenous groups to access 5G spectrum more easily, fostering innovation and improved connectivity. This initiative, led by Innovation, Science and Economic Development (ISED) Canada under the spectrum management program, simplifies spectrum licensing for localized networks, empowering organizations to deploy private 5G networks and enhance digital services. The system will impact local operators and community stakeholders by facilitating spectrum allocation decisions and ensuring fair, efficient access in certain bands designated for local licensing. The decision-making process is automated, with an intuitive online portal that streamlines applications, verifies eligibility, and checks spectrum availability, while ensuring policy compliance and equitable distribution. NCLL integrates seamlessly with ISED's Spectrum Management System to leverage other sub-systems, such as billing. Key safeguards include compliance checks, transparent decision-making, and policy alignment to uphold fairness. If an applicant disagrees with a decision, they can contact ISED to seek resolution.

About The System

9. Please check which of the following capabilities apply to your system.

Risk assessment: Analyzing very large data sets to identify patterns and recommend courses of action and in some cases trigger specific actions

Process optimization and workflow automation: Analyzing large data sets to identify and anomalies, cluster patterns, predict outcomes or ways to

optimize; and automate specific workflows

Section 1: Impact Level : 1

Current Score: 25

Raw Impact Score: 25

Mitigation Score: 34

Section 2: Requirements Specific to Impact Level 1

Peer review

None

Gender-based Analysis Plus

None

Notice

None

Human-in-the-loop for decisions

Decisions may be rendered without direct human involvement.

Explanation

In addition to any applicable legal requirement, ensure that a meaningful explanation is published for common decision results. The explanation must provide a general description of:

- the role of the system in the decision-making process;
- input data, its source and method of collection;
- the criteria used to evaluate input data and the operations applied to process it;
- the output produced by the system and any relevant information needed to interpret it in the context of the administrative decision; and
- the principal factors behind a decision.

Explanations must also inform clients of relevant recourse options, where appropriate.

Descriptions must be made available in plain language through the Algorithmic Impact Assessment and discoverable via a departmental website.

Training

None

IT and business continuity management

None

Approval for the system to operate

None

Other requirements

The Directive on Automated Decision-Making also includes other requirements that must be met for all impact levels.

[Link to the Directive on Automated Decision-Making](#)

Contact your institution's ATIP office to discuss the requirement for a Privacy Impact Assessment as per the Directive on Privacy Impact Assessment.

Section 3: Questions and Answers

Section 3.1: Impact Questions and Answers

Reasons for Automation

1. What is motivating your team to introduce automation into this decision-making process? (Check all that apply)

Lower transaction costs of an existing program

Use innovative approaches

Improve overall quality of decisions

Existing backlog of work or cases

The system is performing tasks that humans could not accomplish in a reasonable period of time

2. What client needs will the system address and how will this system meet them? If possible, describe how client needs have been identified.

The NCLL application serves a diverse range of clients, including businesses, rural and remote communities, Indigenous groups, and organizations seeking to deploy private 5G networks. These clients often face barriers in accessing spectrum due to complex regulatory processes and competitive licensing structures. The NCLL application addresses the need for simplified, more accessible spectrum licensing, enabling local operators to establish reliable connectivity solutions tailored to their communities. Users will now be able to use the mapping tools within the NCLL application to plan for their networks and check for potential interference in a new user-friendly way.

To identify client needs, ISED conducted consultations with industry stakeholders, community representatives, and Indigenous organizations. Feedback highlighted the need for a streamlined application process, greater transparency in spectrum availability, and a fair framework to support local innovation.

The most critical needs addressed by the automated system include reducing administrative burden, accelerating licensing approvals, and ensuring easy access to spectrum. The system's automation focuses on simplifying applications, validating spectrum availability, and flagging potential conflicts,

while reducing workload on spectrum management officers.

3. Please describe any public benefits the system is expected to have.

The NCLL application is expected to benefit the public by improving accessibility and efficiency in spectrum licensing. The use of the automation will enhance more timely service delivery by streamlining application and reducing wait times, automatically verifying eligibility, and checking spectrum availability in real time, thereby accelerating the deployment of wireless service. The application will also ensure more accurate and fair decision making given the system allocates spectrum based on predefined rules, reducing the risk of bias, inconsistency and general error when dealing with data. Lastly it is expected to enhance transparency as the system provides status messages regarding applications allowing users to track applications which was not previously done. Moreover, the application will give clear reasoning behind licensing decisions and provide appropriate contact information for questions or help.

4. How effective will the system likely be in meeting client needs?

Very effective

[Points: +0]

5. Please describe any improvements, benefits, or advantages you expect from using an automated system. This could include relevant program indicators and performance targets.

The automated system for the Non-Competitive Local Licensing (NCLL) application is expected to have many benefits, including cost savings, consistency and operational efficiencies by reducing the time spent on manual processing. This will help streamline the application review process and enable more timely service delivery. The current service commitment is 12 weeks however, automation will help meet service standards by making decisions more efficiently, potentially reducing application processing times to less than a two-week wait. Without automation, the expected influx of applications or 5G related requests could create bottle necks.

The system will support employees by reducing repetitive tasks, allowing them to focus on more complex, value-added work. Automation will also improve decision consistency by standardizing the process, which will reduce the likelihood of errors in the licensing process

6. Please describe how you will ensure that the system is confined to addressing the client needs identified above.

To ensure that the automated decision system addresses only the client needs, several safeguards and limitations will be implemented. First, restricted access to sensitive data will be enforced, with only authorized personnel being able to access or interact with the system. This will limit the possibility of misuse or unnecessary exposure of personal information. Additionally, the system is designed to limit the collection and use of client data to what is strictly necessary for making licensing decisions.

Technical safeguards will also be in place to ensure the system operates within the scope of its intended functionality. Guardrails will be implemented to prevent the system from making decisions outside the defined rules for spectrum allocation. Data validation and compliance checks will ensure that the system only processes valid applications, and that decisions align with the underlying spectrum regulations and program guidelines.

In terms of monitoring and oversight, a robust audit trail will track all system decisions and actions taken through log files and workflow history. Clients will be able to track the application lifecycle and monitor their application and licence status in near real-time through the NCLL Portal. Regular reviews will be conducted by the program team to assess system performance and ensure that decisions continue to align with program objectives. Moreover, ongoing feedback loops from stakeholders may be incorporated to make adjustments as needed.

7. Please describe any trade-offs between client interests and program objectives that you have considered during the design of the project.

During the design of the NCL Licensing application, we carefully considered trade-offs between client interests and program objectives to ensure a system that is both efficient and user-friendly while maintaining regulatory integrity.

One key consideration was balancing the complexity of the system's design with ease of use. While a more sophisticated system could offer advanced features and greater flexibility, it was essential to ensure that the application process remained accessible to a broad range of users, including those with varying levels of technical expertise. Simplifying the process too much, however, risked limiting necessary functionalities or requiring additional staff intervention, which could reduce overall efficiency.

Another trade-off involved processing speed versus accuracy. Automation enables faster licence issuance, supporting timely access to spectrum. However, allowing time for applicants to review and correct potential errors was also an important factor. To address this, we designed the system to streamline approvals while incorporating safeguards that enable applicants to rectify mistakes within a reasonable timeframe.

Additionally, we considered the impact on internal staff. A fully automated system that minimizes user input could place a greater burden on program administrators to validate applications or resolve issues. Conversely, a system with more structured client interactions ensures that applications are submitted correctly, reducing the need for manual corrections and follow-ups. Finding the right balance was key to optimizing both user experience and operational efficiency.

8. Have alternative non-automated processes been considered?

Yes

[Points: +0]

9. If non-automated processes were considered, why was automation identified as the preferred option?

Automation was chosen as the preferred approach to efficiently manage the anticipated increase in licensing activities resulting from the rollout of 5G. A manual process would be resource-intensive, requiring significant staff involvement to review, verify, and approve applications, leading to longer processing times and potential bottlenecks. By contrast, automation streamlines these tasks, allowing for faster licence issuance while maintaining accuracy and consistency.

An automated system improves service delivery by reducing administrative complexity, minimizing human error, and ensuring applications are processed based on predefined rules. This approach enhances fairness, as all applicants

are assessed against the same objective criteria, reducing the risk of inconsistency in decision-making. Additionally, automation enables real-time eligibility verification and spectrum availability checks, allowing for quicker responses to applicants.

From an operational standpoint, automation also optimizes internal resource allocation. By reducing the need for manual intervention in routine applications, staff can focus on more complex cases that require expert review. This balance ensures that the program remains responsive to demand while maintaining high service standards.

Ultimately, automation supports the broader objective of ensuring timely and efficient access to spectrum, facilitating innovation and connectivity in Canada's evolving digital landscape.

10. What would be the consequence of not deploying the system?

Service cannot be delivered in a timely or efficient manner

[Points: +2]

Service quality is not as high

[Points: 0]

Risk Profile

11. Is the project within an area of intense public scrutiny (e.g. because of privacy concerns) and/or frequent litigation?

No

[Points: +0]

12. Are clients in this line of business particularly vulnerable?

No

[Points: +0]

13. Are stakes of the decisions very high?

No

[Points: +0]

14. Will this project have major impacts on staff, either in terms of their numbers or their roles?

No

[Points: +0]

15. Will the use of the system create or exacerbate barriers for persons with disabilities?

No

[Points: +0]

Project Authority

16. Will you require new policy authority for this project?

No

[Points: +0]

About the Algorithm

17. The algorithm used will be a (trade) secret

No

[Points: +0]

18. The algorithmic process will be difficult to interpret or to explain

No

[Points: +0]

About the Decision

19. Please describe the decision(s) that will be automated.

Automation as a part of the NCL Licensing Framework will analyze data submitted by the applicant and check the following criteria: 1) user-defined area doesn't exceed area limits 2) interference to and from other applicants/licensees, 3) that the requested bandwidth does not exceed a spectrum cap limit, and 4) that no international coordination might be required if near a border. If an application fails the interference or spectrum cap check, the system generates a detailed rationale and provides recommendations on how to modify and resubmit the application.

The decision is primarily made by the automated system, with ISED officers having the ability to manually correct errors or review applications if needed. The primary individuals impacted by this decision are applicants seeking a Non-Competitive Local licence. It is estimated that 900 applicants will be affected in the first year, with this number increasing to 3,300 within five years. Given that there are no existing incumbents impacted, the decision primarily affects new applicants who may need to revise and resubmit their applications if they do not initially meet the required conditions.

The system evaluates data submitted directly by the applicant, including business contact information, business number, requested licence area (WKT format or coordinates), spectrum frequency, spectrum block, and invoicing details. No modifications to the submitted data are made. The system validates applications against established policy requirements, such as maximum licence area size, and ensures that the requested spectrum does not cause interference or exceed allowed bandwidth limits.

Applicants have recourse options if their application is rejected due to interference concerns or if they have exceeded the spectrum cap limitations. The system provides clear feedback and recommendations, allowing them to adjust the area and/or frequencies and resubmit their application. Applicants will have the ability to edit the area and/or frequencies requested in their application and re-submit it in this case. Although expected to be a rare occurrence, ISED officers are able to manually correct errors that may occur during the licensing process.

Additionally, the system will automatically authorize the application and send an authorization email to the applicant along with the invoice. Once a full payment is received, the system will generate the licence, which will be available for download in the NCLL portal under the licence account. The system will also facilitate ongoing compliance verification by ensuring that licensees update their station data, as stipulated in the framework. The system will do so by automatically verifying if licensees are updating their station data attesting to their deployment conditions. If the information has not been recorded in the system, reminders will be sent to licensees to inform them to submit the required information, otherwise licenses won't be eligible for renewal.

20. Does the decision pertain to any of the categories below (check all that apply):
Licensing and issuance of permits [Points: +1]

Impact Assessment

21. Which of the following best describes the type of automation you are planning?
Full automation (the system will make an administrative decision) [Points: +4]

22. Please describe the role of the system in the decision-making process.

The NCL application system plays an important role in the decision-making process for issuing spectrum licences. The system is involved at several key stages, starting with the initial application submission. It automatically performs technical checks, such as ensuring the requested area is within limits, requested spectrum is available, verifying there are no interference concerns, and confirming the applicant will not exceed spectrum caps in the area. These automated checks help ensure applications meet basic eligibility and technical requirements.

After these checks, the system holds the application for one week to allow Spectrum Management Officers (SMOs) the opportunity to review it if needed. This human review provides an additional layer of oversight where necessary. If no review is required, the system automatically progresses the application, notifying the applicant, issuing an invoice, and, once payment is received, granting the licence.

The system is also involved post licensing, to ensure that licensees adhere to licence conditions. The system issues automatic notifications reminding licensees that they have not uploaded site data which would make them ineligible for renewal. There are many warnings and SMOs would be presented with the information and with the opportunity to intervene before such a step is taken.

The system's outputs—such as application status, check results, and invoices—are shared with both applicants and ISED staff through online tools and automatic notifications. The system is designed specifically for the NCL licensing process, ensuring it supports the unique needs of localized spectrum licensing while maintaining flexibility for human intervention if needed.

This automated system is merely used for verifying NCL applications and issuing and renewing NCL licences. It won't be used for any other purpose within the organization. It is used by external applicants who request NCL licences and by SMOs who provide the oversight over the system and the resulted automated decisions.

23. Will the system be making decisions or assessments that require judgement or discretion?
No [Points: +0]

24. Please describe the criteria used to evaluate client data and the operations applied to process it.

The automated licensing application for the NCL Framework uses a rules-based system to assess input data against clearly defined criteria, ensuring a transparent, consistent, and efficient decision-making process. The system evaluates applications based on three key criteria: 1) area size check, which ensures that the requested area size is within the area limits set by regulation; 2) interference checks, which ensure that the requested licence area, bandwidth, or block does not conflict with existing licensees or other applicants; 3) spectrum cap compliance, which verifies that the requested bandwidth does not exceed the maximum allowable allocation as set by regulations. It also considers if ; and 4) international coordination is required if the requested licence area falls near a border but this does not impact the issuance of a licence. , which determines whether the requested spectrum

falls near a border and may require additional coordination with regulatory bodies in other jurisdictions. These criteria were established based on policy and regulatory requirements, industry standards, and technical guidelines governing spectrum management.

The system primarily evaluates the requested licence area and the specific frequency range or spectrum block that the applicant is requesting. Once an application is submitted, the system automatically cross-references the requested licence area and spectrum against existing licensees in the spectrum management system as recorded by ISED to identify potential conflicts. It then conducts an interference analysis to detect any technical issues, ensures that the requested bandwidth does not exceed the permitted spectrum cap if applicable, and flags applications near international borders that may require additional coordination. The system uses predefined decision rules and an automated validation process to assess whether the application meets the necessary criteria. If an application fails to meet interference or spectrum cap requirements, the system generates a detailed rationale report explaining the issue and provides recommendations for resubmission. Applicants receive automated feedback, allowing them to adjust their requests and resubmit without unnecessary delays.

A similar rule-based logic is applied to the compliance verification automated process, where the system verifies the uploaded site data to check if the licensee meets their conditions of license and deployment requirements.

25. Please describe the output produced by the system and any relevant information needed to interpret it in the context of the administrative decision.

For the assessment of an application the system produces a number of outputs so that it is clear for applicants as well as Spectrum Management Officers (SMOs). Once an applicant has finished the application process a confirmation of receipt window appears and notifies them an email will be sent with the decision. Decisions in the form of emails are sent to applicants and in the instance where technical or policy considerations have not been met an email with clear reasoning and next steps is sent to the applicant. Moreover, the applicant has access to a portal that also shows the status of their applications and licences. Post licensing emails are also sent to remind clients to adhere to their conditions of licence as well as related to the payment of a licence and its renewal

Officers have access to all input data submitted by the applicant, including technical details about the requested spectrum, location, and intended use. This allows them to validate the system's automated checks if needed. A configurable period is set in the system prior to the licence authorization, allowing officers to inspect and review applications (if needed) as part of continuous quality assurance. Officers are provided with guidance materials and training to ensure they understand the system's outputs, how to review them, and how to intervene if there are concerns or exceptional cases. This training also covers awareness of potential risks, such as data entry errors or system limitations, and outlines steps for manual review when necessary. Additionally, a series of independent reports are programmed outside the system to complement the system tracking. Among the many transactional reports, a report will be generated daily, flagging to officers any applications that need their attention.

26. Will the system perform an assessment or other operation that would not otherwise be completed by a human?

No

[Points: +0]

27. Is the system used by a different part of the organization than the ones who developed it?

No

[Points: +0]

28. Are the impacts resulting from the decision reversible?

Likely reversible

[Points: +2]

29. How long will impacts from the decision last?

Impacts can last years

[Points: +3]

30. Please describe why the impacts resulting from the decision are as per selected option above.

The impacts of this process are not long-lasting, as applicants have clear and efficient pathways to resolve any issues. If a licence passes the automated analysis, it is considered granted, and an invoice is emailed to the licensee. However, the licence is not issued until the invoice is paid. This ensures that applicants have the opportunity to correct any errors and resubmit their application before payment, minimizing potential delays. If a licence is not granted, the applicant receives a detailed explanation of the reasons and can contact the appropriate office for further clarification. They also have the option to reapply or explore alternative solutions, allowing them to take prompt action to address the issue. Additionally, ISED remains available to discuss alternative spectrum options should a licence not be available in the respective area. Since the process provides multiple opportunities for resolution, any delays are temporary, and the overall impact is short-term.

31. The impacts that the decision will have on the rights or freedoms of individuals will likely be:

Little to no impact

[Points: +1]

32. Please describe why the impacts resulting from the decision are as per selected option above.

A decision by the system will have little to no impact on the right or freedoms of individuals. There is no right to the spectrum licences in question – the licences are in the nature of a discretionary ‘privilege’ to use a public resource. The system is collecting very basic information (name, number, email address) that does not factor into the decision making process nor consider gender, ethnicity, or other protected characteristics. The system has been developed with fairness in mind and licenses are granted on a first come first served basis. The system is fully bilingual and has been tested in English and French to ensure users receive equal quality service and support is available in the language of the clients choosing. Any incorrect decisions could be resolved in a relatively short period (days to weeks) through the implementation of corrective actions. The user interface meets the accessibility requirements of the government and was designed and duly tested to be user-friendly.

33. The impacts that the decision will have on the equality, dignity, privacy, and autonomy of individuals will likely be:

Little to no impact

[Points: +1]

34. Please describe why the impacts resulting from the decision are as per selected option above.

Any decision made by the Non Competitive Local Licensing system will have little to no impact on the equality, privacy and autonomy of individuals. Even though a limited volume of personal information is being provided, it is solely business information. While a decision is being made (i.e., to award or deny a spectrum license based on rules based system) that decision is generally being made in respect of a business and not usually in respect of a private individual. Therefor a decision to grant a licence does not impact the dignity or autonomy of an individual. For those cases where the license is awarded to a private individual, the risk to privacy are very low especially in consideration of the ISED requirement to make the names of licence holders public. Any incorrect decisions could be resolved in a relatively short period (days to weeks) through the implementation of corrective actions.

35. The impacts that the decision will have on the health and well-being of individuals will likely be:

Little to no impact

[Points: +1]

36. Please describe why the impacts resulting from the decision are as per selected option above.

The system itself is not expected to have any direct impacts on the health and well-being of individuals. However, by streamlining the licensing process and improving access to spectrum, particularly in rural, remote, and underserved areas, the system indirectly supports improved connectivity. Enhanced access to broadband and wireless services can contribute to positive outcomes for individuals by enabling better access to telehealth services, online education, emergency communication systems, and remote work opportunities. While these broader societal benefits can positively affect health and well-being, they are a secondary outcome of improved connectivity rather than a direct result of the system itself.

37. The impacts that the decision will have on the economic interests of individuals will likely be:

Moderate impact

[Points: +2]

38. Please describe why the impacts resulting from the decision are as per selected option above.

The system is not expected to have direct impacts on the economic interests of individuals. However, spectrum is a finite resource, and ISED manages it to ensure its optimal use for the benefit of all Canadians. Licences issued through the system are granted on a first-come, first-served basis, and applications are subject to automated interference checks and spectrum cap verifications to ensure efficient and fair spectrum use. In cases where an applicant is unable to secure a licence in their desired area due to interference or spectrum availability, there are alternative solutions that ISED can work with applicants to explore. These could include adjusting parameters such as area size or identifying alternate spectrum bands that may be better suited to meet their needs. While not obtaining a licence in a specific area may have economic impacts for certain applicants, the system and ISED's broader spectrum management framework are designed to promote efficient spectrum use and provide flexibility to help applicants pursue viable alternatives.

However, by automating and streamlining the licensing process, the system indirectly supports economic development by enabling faster access to spectrum for industries, businesses, and wireless service providers. This, in turn, can foster innovation and support the deployment of new technologies, particularly in sectors such as agriculture, manufacturing, and utilities. Additionally, improved access to wireless services – particularly in rural, remote, and Indigenous communities – can enhance economic opportunities for individuals by enabling greater access to online markets, remote work, digital education, and e-commerce platforms. While these economic benefits are not a direct result of the system itself, they are an important downstream impact of expanding access to spectrum and enhancing connectivity.

39. The impacts that the decision will have on the ongoing sustainability of an environmental ecosystem, will likely be:

Little to no impact

[Points: +1]

40. Please describe why the impacts resulting from the decision are as per selected option above.

The decision of the Non-Competitive Local (NCL) Licensing application is expected to have little to no impact on the environmental ecosystem. The primary purpose of this licensing framework and the related automation, is to improve access to spectrum and wireless services for Canadians. While granting a licence may lead to the deployment of base stations and related equipment, strict regulatory measures ensure that environmental and health considerations are addressed.

All telecommunications equipment used in Canada must comply with equipment certification and safety regulations, ensuring they operate within safe limits. To protect public health, ISED adopted Health Canada's Safety Code 6 (SC6) guidelines, which recommend limits for safe human exposure to radiofrequency energy. ISED's regulatory framework also ensures that infrastructure deployment considers environmental and community concerns. Before any towers or wireless infrastructure are installed, ISED requires operators to follow the Antenna Tower Siting Policy, which involves consulting with local governments and communities, addressing land-use compatibility, and adhering to safety and environmental standards.

Additionally, ISED regulates tower siting decisions, resolves disputes, and enforces health and safety standards to mitigate any potential risks. Since these measures are already in place, the likelihood of any significant or lasting environmental impact from the NCL Licensing process is minimal.

About the Data - A. Data Source

41. Will the Automated Decision System use personal information as input data?

No

[Points: +0]

42. What is the highest security classification of the input data used by the system? (Select one)

None

[Points: +0]

43. Who controls the data?

Federal government

[Points: +1]

44. Will the system use data from multiple different sources?

No

[Points: +0]

45. Will the system require input data from an Internet- or telephony-connected device? (e.g. Internet of Things, sensor)

No

[Points: +0]

46. Will the system interface with other IT systems?

Yes

[Points: +4]

47. Who collected the data used for training the system?

Your institution

[Points: +1]

48. Who collected the input data used by the system?

Your institution

[Points: +1]

49. Please describe the input data collected and used by the system, its source, and method of collection.

The system collects and processes various data elements to assess and issue spectrum licences under ISED's NCL Licensing Framework. Input data is provided directly by applicants through the online application portal, including the requested geographic area (in WKT text or coordinate format), frequency/block requested, technical parameters such as power levels, an attestation of whether they have below or above 100,000 retail mobile phone subscribers and an email for invoicing purposes. No manipulations to the data are made. The system assesses the data by running an automated interference check to assess potential conflicts with existing spectrum users and performing a spectrum cap verification to ensure applicants do not exceed limits based on previously issued licences. This is performed by comparing the data collected to ISED's radio licence database. Once the initial checks are passed, applications are held in the system for one week to allow for potential review by Spectrum Management Officers (SMO), after which the system automatically generates and sends an authorization email advising the applicant that an invoice will follow. After payment is received, the system automatically issues the licence. The system also automates compliance monitoring by sending up to three reminders (180 days, 90 days and 30 days) to licensees prior to the end of the two-year grace period, prompting them to upload updated site data. This combination of applicant-provided data, system-generated analysis, and ongoing compliance monitoring ensures the licensing process is efficient, transparent, and aligned with program objectives. For the assessment of an application the system produces a number of outputs so that it is clear for applicants as well as Spectrum Management Officers (SMOs). Once an applicant has finished the application process a confirmation of receipt window appears and notifies them an email will be sent with the decision. Decisions in the form of emails are sent to applicants and in the instance where technical or policy considerations have not been met an email with clear reasoning and next steps is sent to the applicant. Moreover, the applicant has access to a portal that also shows the status of their applications and licences. Post licensing emails are also sent to remind clients to adhere to their conditions of licence as well as related to the payment of a licence and its renewal

Officers have access to all input data submitted by the applicant, including

technical details about the requested spectrum, location, and intended use. This allows them to validate the system's automated checks if needed. A configurable period is set in the system prior to the licence authorization, allowing officers to inspect and review applications (if needed) as part of continuous quality assurance. Officers are provided with guidance materials and training to ensure they understand the system's outputs, how to review them, and how to intervene if there are concerns or exceptional cases. This training also covers awareness of potential risks, such as data entry errors or system limitations, and outlines steps for manual review when necessary. Additionally, a series of independent reports are programmed outside the system to complement the system tracking. Among the many transactional reports, a report will be generated daily, flagging to officers any applications that need their attention.

About the Data - B. Type of Data

50. Will the system require the analysis of unstructured data to render a recommendation or a decision?

No

[Points: 0]

Section 3.2: Mitigation Questions and Answers Consultations

1. Internal Stakeholders (federal institutions, including the federal public service)

Yes

[Points: +1]

2. Which Internal Stakeholders have you engaged?

Access to Information and Privacy Office

Legal Services

Communications services

Strategic Policy and Planning

Program Policy

Data Governance

Client Experience / Client Relationship Management

TBS Office of the Chief Information Officer

Accessibility Working Groups

Digital Policy

3. External Stakeholders (groups in other sectors or jurisdictions)

Yes

[Points: +1]

4. Which External Stakeholders have you engaged?

Industry

International Organizations

Clients or their Representatives

Indigenous Groups

Civil Society

Academia

Governments in other Jurisdictions

De-Risking and Mitigation Measures - Data Quality

5. Do you have documented processes in place to test datasets against biases and other unexpected outcomes? This could include experience in applying frameworks, methods, guidelines or other assessment tools.

No [Points: +0]

6. Is this information publicly available?

No [Points: +0]

7. Have you developed a process to document how data quality issues were resolved during the design process?

Yes [Points: +1]

8. Is this information publicly available?

No [Points: +0]

9. Have you undertaken a Gender Based Analysis Plus of the data?

No [Points: +0]

10. Is this information publicly available?

No [Points: +0]

11. Have you assigned accountability in your institution for the design, development, maintenance, and improvement of the system?

Yes [Points: +2]

12. Do you have a documented process to manage the risk that outdated or unreliable data is used to make an automated decision?

Yes [Points: +2]

13. Is this information publicly available?

No [Points: +0]

14. Is the data used for this system posted on the Open Government Portal?

No [Points: +0]

De-Risking and Mitigation Measures - Procedural Fairness

15. Does the audit trail identify the authority or delegated authority identified in legislation?

Yes [Points: +1]

16. Does the system provide an audit trail that records all the recommendations or decisions made by the system?

Yes [Points: +2]

17. Are all key decision points identifiable in the audit trail?

Yes [Points: +2]

18. Are all key decision points within the automated system's logic linked to the relevant legislation, policy or procedures?

Yes [Points: +1]

19. Do you maintain a current and up to date log detailing all of the changes made to the model and the system?

Yes [Points: +2]

20. Does the system's audit trail indicate all of the decision points made by the system?

Yes [Points: +1]

21. Can the audit trail generated by the system be used to help generate a notification of the decision (including a statement of reasons or other notifications) where required?

Yes [Points: +1]

22. Does the audit trail identify precisely which version of the system was used for each decision it supports?

Yes [Points: +2]

23. Does the audit trail show who an authorized decision-maker is?

Yes [Points: +1]

24. Is the system able to produce reasons for its decisions or recommendations when required?

Yes [Points: +2]

25. Is there a process in place to grant, monitor, and revoke access permission to the system?

Yes [Points: +1]

26. Is there a mechanism to capture feedback by users of the system?

Yes [Points: +1]

27. Is there a recourse process established for clients that wish to challenge the decision?

Yes [Points: +2]

28. Does the system enable human override of system decisions?

Yes [Points: +2]

29. Is there a process in place to log the instances when overrides were performed?

Yes [Points: +1]

30. Does the system's audit trail include change control processes to record modifications to the system's operation or performance?

Yes [Points: +2]

31. Have you prepared a concept case to the Government of Canada Enterprise Architecture Review Board?

No [Points: +0]

De-Risking and Mitigation Measures - Privacy

32. If your system uses or creates personal information, have you undertaken a Privacy Impact Assessment, or updated an existing one?

Yes [Points: +1]

33. Please indicate the following in your answer: Title and scope of the Privacy Impact Assessment; How the automation project fits into the program; and Date of Privacy Impact Assessment completion or modification.

ISED consulted with ATIP services regarding the requirement for a Privacy Impact Assessment (PIA) for the Non-Competitive Local (NCL) Licensing Application in February 2022. Following a preliminary review, the ISED delegate for the Privacy Act determined that the NCL Licensing Application was exempt from requiring a PIA. This determination was revisited in 2025, prior to implementation, and was confirmed to remain valid.

A Privacy Protocol is also not required, as the application only collects limited business contact information, which falls under ISED's Program Participation Class of Record (as published in the annual Info Source report). While the system makes administrative decisions regarding the issuance of spectrum licences, these decisions are typically associated with businesses rather than private individuals. In the rare cases where a licence is issued to an individual, privacy risks are considered very low, particularly given that ISED is required to publicly disclose the names of licence holders.

To ensure transparency and compliance, a TBS-compliant privacy statement was included at the point of information collection, aligning with federal privacy guidelines.

34. Have you designed and built security and privacy into your systems from the concept stage of the project?

Yes

[Points: +1]

35. Is the information used within a closed system (i.e. no connections to the Internet, Intranet or any other system)?

No

[Points: +0]

36. If the sharing of personal information is involved, has an agreement or arrangement with appropriate safeguards been established?

Yes

[Points: +1]

37. Will you de-identify any personal information used or created by the system at any point in the lifecycle?

No

[Points: +0]